Class 1: CPC — Structure, Key Definitions and Jurisdiction

Code of Civil Procedure, 1908 | Law Refresher Course, Phase 1

Part A: What Has Changed Since 1994

Change	Effect
CPC Amendment Acts of 1999 and 2002 (in force from 1 July 2002)	Written statement due within **30 days**, extendable to a maximum of **90 days** (Order VIII Rule 1). No more than **3 adjournments** per party (Order XVII Rule 1).
Section 89 added	Courts must refer suitable cases to ADR: arbitration, conciliation, mediation, Lok Adalat.
Commercial Courts Act, 2015	For commercial disputes of ₹3 lakh and above, the 120-day limit for the written statement is strict. Also brings pre-institution mediation (S.12A) and case management hearings.
New criminal laws, from 1 July 2024	IPC, CrPC and the Evidence Act are replaced by the **BNS, BNSS and Bharatiya Sakshya Adhiniyam**. Evidence rules apply in civil trials too.
E-filing and virtual hearings	Now routine in most High Courts and many district courts.

Part B: Structure of the CPC

1. **Sections 1–158** contain the substantive principles, such as jurisdiction, res judicata, appeals and execution. Only **Parliament** can amend them.
2. **The First Schedule, with 51 Orders**, contains the procedural rules. **High Courts** can amend these for their own state (Section 122). Andhra Pradesh has its own local amendments.

Memory aid: Sections tell you *what* the law is. Orders tell you *how* to do it.
Where a Section and a Rule conflict, the **Section prevails**.

Part C: Key Definitions (Section 2)

1. Decree, S.2(2)

The formal expression of an adjudication that **conclusively determines the rights of the parties** on all or any of the matters in controversy in the suit.

Five essentials:

1. There is an adjudication (a judicial decision).
2. It is made in a **suit**.
3. It determines the **rights of the parties**.
4. The determination is **conclusive**, meaning final as far as that court is concerned.
5. It is **formally expressed**.

Three kinds:

- **Preliminary decree:** rights are decided but further proceedings are needed, e.g. partition suits and suits for accounts.
- **Final decree:** the suit is completely disposed of.
- **Partly preliminary, partly final:** e.g. a decree for possession (final) together with an inquiry into mesne profits (preliminary).

Deemed decrees: rejection of a plaint (Order VII Rule 11), and determination of a question under Section 144 (restitution).

Not a decree: an order from which an appeal lies as from an order, and dismissal for default.

Clarification: "an order from which an appeal lies as from an order"

Where it is: CPC **S.2(2)**, the exclusion clause. A decree "shall not include **(a)** any adjudication from which an appeal lies as an appeal from an order, or **(b)** any order of dismissal for default."

Meaning: some decisions look final, but the CPC gives them their own appeal route as *orders*. Because they have that separate route, they are **not decrees**, even if they end the matter.

	Appeal from a decree	Appeal from an order
Provision	**S.96** (first appeal), **S.100** (second appeal)	**S.104** and **O.43 R.1** (a closed list)
Second appeal?	Yes, on a substantial question of law (**S.100**)	**No**: **S.104(2)** bars a second appeal from an appellate order
Time limit	Limitation Act **Art.116**: 90 days to the High Court, 30 days to any other court	Same, **Art.116**

Common appealable orders under O.43 R.1:

- **(a)** returning a plaint under **O.7 R.10** (wrong court)
- **(c)** rejecting an application under **O.9 R.9** to restore a suit dismissed for default
- **(d)** rejecting an application under **O.9 R.13** to set aside an ex parte decree
- **(r)** granting or refusing a temporary injunction under **O.39 R.1, R.2, R.2A, R.4, R.10**
- **(s)** appointing a receiver under **O.40 R.1, R.4**

Orders not in that list cannot be appealed separately. Under **S.105**, an error in such an order can be raised in the appeal against the final decree.

Decision	Status	Remedy
Rejection of plaint (**O.7 R.11**)	**Deemed decree** (included in S.2(2))	First appeal under **S.96**
Return of plaint (**O.7 R.10**)	**Appealable order** (excluded from S.2(2))	Appeal under **O.43 R.1(a)**
Dismissal for default (**O.9 R.8**)	Neither a decree nor an appealable order	Restoration application under **O.9 R.9**. If that is rejected, appeal under **O.43 R.1(c)**

Trick: "If the CPC gives it a ticket in **O.43**, it travels as an **order**, never as a decree." Rejection = decree. Return = order.

2. Judgment, Order and the parties

Term	Section	Meaning
Judgment	S.2(9)	The statement the judge gives of the **grounds** of a decree or order
Order	S.2(14)	The formal expression of any decision of a civil court that is **not a decree**
Decree-holder	S.2(3)	The person in whose favour a decree is passed or an executable order made
Judgment-debtor	S.2(10)	The person against whom it is passed
Legal Representative	S.2(11)	A person who in law represents the estate of a deceased person, including an intermeddler
Mesne Profits	S.2(12)	Profits a person in **wrongful possession** actually received or might with ordinary diligence have received, **plus interest**. Profits from improvements made by that person are excluded.

Judgment = the reasons. **Decree** = the final operative result. **Order** = any other decision.

Part D: Section 9, Jurisdiction of Civil Courts

"The Courts shall have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred."

Suit of a civil nature

The main question in the suit concerns a **civil right**, such as property, contract or office.

- **Explanation I:** a suit about a right to property or to an office is civil even if it depends on religious rites or ceremonies.
- **Explanation II:** this applies whether or not any fees are attached to the office.
- A right to worship in a temple is civil in nature. A suit purely to uphold caste dignity or social status is not.

Express and implied bars

- **Express bar:** the statute itself excludes the civil court, e.g. **Section 34 of the SARFAESI Act** (matters before the DRT), the Income-tax Act, and certain land revenue and tenancy laws.
- **Implied bar:** the statute creates a special right together with a special remedy and tribunal, so ouster of the civil court is inferred.

Landmark cases

Case	Point
Dhulabhai v. State of M.P. (1968, SC)	Exclusion of civil court jurisdiction **must not be readily inferred**. Even where it is barred, the civil court can examine cases where the tribunal acted **without jurisdiction** or ignored fundamental principles of judicial procedure.
Kiran Singh v. Chaman Paswan (1954, SC)	A decree passed without **inherent** jurisdiction is a **nullity** and can be challenged at any stage, even in execution.

Golden rule: there is always a presumption **in favour** of civil court jurisdiction.
Trick: "The civil court is the default doctor. A specialist (tribunal) takes over only if the law clearly says so."

Class 1 Test (21 marks)

Section 1: Multiple choice (1 mark each)

1. The CPC has how many Sections and Orders? (a) 158 Sections, 51 Orders (b) 151 Sections, 58 Orders (c) 160 Sections, 50 Orders (d) 158 Sections, 48 Orders
2. Who can amend the Rules in the First Schedule for their state? (a) Parliament only (b) State Legislature (c) High Court (d) Supreme Court
3. Rejection of a plaint under Order VII Rule 11 is: (a) an order (b) a deemed decree (c) a judgment (d) none of these
4. Dismissal of a suit for default is: (a) a decree (b) a preliminary decree (c) not a decree (d) a final decree
5. Mesne profits do **not** include: (a) profits actually received (b) interest on such profits (c) profits due to improvements made by the person in wrongful possession (d) profits that could have been received with ordinary diligence
6. Under the amended Order VIII Rule 1, the maximum time for filing a written statement in an ordinary civil suit is: (a) 30 days (b) 60 days (c) 90 days (d) 120 days

Section 2: Short answers (3 marks each)

7. Distinguish between **Judgment, Decree and Order**, with one example of each.
8. What are **preliminary** and **final** decrees? Can a suit have more than one preliminary decree?
9. Explain **express bar** and **implied bar** under Section 9, with one example of each.

Section 3: Practical problem (6 marks)

10. A customer books **Samriddhi Hall** at SLNS Vaibhavam for a wedding and pays ₹2,00,000 as advance. Two weeks before the event the customer cancels and sues in the civil court at Nandyal for a full refund. Your booking agreement says *"all disputes shall be decided only by the Consumer Commission."*
    - (a) Is this a "suit of a civil nature" under Section 9? Give your reasons.
    - (b) Can a private agreement oust the jurisdiction of a civil court? What principle applies? (Hint: Section 28 of the Indian Contract Act.)
    - (c) As the hall owner's advocate, what defence would you raise?